EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

FIFTH SECTION

DECISION

Application no. 63959/11
Nasrulla MAMMADLI
against Azerbaijan

The European Court of Human Rights (Fifth Section), sitting on 5 January 2016 as a Committee composed of:

Faris Vehabović, *President,*
Khanlar Hajiyev,
Carlo Ranzoni, *judges,*

and Milan Blasko, *Deputy Section Registrar,*

Having regard to the above application lodged on 29 September 2011,

Having deliberated, decides as follows:

FACTS AND PROCEDURE

The applicant, Mr Nasrulla Mammadli, is an Azerbaijani national, who was born in 1955 and lives in Baku. He was represented before the Court by Mr E. Namazov, a lawyer practising in Azerbaijan.

The Azerbaijani Government ("the Government") were represented by their Agent, Mr Ç. Asgarov.

The applicant complained about having been arrested and sentenced to administrative detention for participation in an unauthorised peaceful demonstration of 12 March 2011 and about unfairness of proceedings against him.

On 17 February 2014 the applicant's complaints under Articles 5, 6, 10 and 11 of the Convention were communicated to the Government, who submitted their observations on the admissibility and merits. On 21 July 2014 the observations were forwarded to the applicant, who was invited to submit his own observations. No reply was received to the Registry's letter.

By letter dated 14 October 2014, sent by registered post, the applicant's representative was notified that the period allowed for submission of his observations had expired on 1 September 2014 and that no extension of

time had been requested. The applicant's representative's attention was drawn to Article 37 § 1 (a) of the Convention, which provides that the Court may strike a case out of its list of cases where the circumstances lead to the conclusion that the applicant does not intend to pursue the application. It is not clear whether the applicant's representative received that letter.

On 28 January 2015 the Court sent another letter with the same content by registered post. The applicant's representative received that letter on 17 February 2015. However, no response has been received.

THE LAW

The Court considers that, in these circumstances, the applicant may be regarded as no longer wishing to pursue his application, within the meaning of Article 37 § 1 (a) of the Convention. Furthermore, in accordance with Article 37 § 1 *in fine*, the Court finds no special circumstances regarding respect for human rights as defined in the Convention and its Protocols which require the continued examination of the case.

In view of the above, it is appropriate to strike the case out of the list.

For these reasons, the Court, unanimously,

Decides to strike the application out of its list of cases.

Done in English and notified in writing on 28 January 2016.

Milan Blaško
Deputy Registrar

Faris Vehabović
President